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IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. BRANDON GEORGE OBORN 1516 DRYSDALE WAY TOOELE, UT 84074 DOB: 4/10/1984 SID: Defendant.	INFORMATION Case No. Judge OTN: 66374893 Bail:
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The State of Utah, by and through the Utah County Attorney's Office, charges the defendant with the commission of the following offense(s):

COUNT 1: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 10/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 2: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

NOTICE: The presumptive sentence for a conviction of this offense is 5 years to life. However, if the trier of fact finds that during the course of the commission of the offense the defendant caused serious bodily injury to the victim the presumptive sentence is 15 years to life. Imprisonment is mandatory.

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COUNT 3: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 4: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 5: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 6: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 7: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

COUNT 8: Rape, a First Degree Felony, in violation of Utah Code Ann. § 76-5-402, in that on or about 8/1/2023, in Utah County, the defendant, BRANDON GEORGE OBORN, did have sexual intercourse with another individual without the individual's consent.

PROBABLE CAUSE STATEMENT: Steven Hawkins of the American Fork Police Department, having probable cause to believe that the defendant committed the above-listed offense(s), submitted the following evidence in support of the filing of this Information:

Between August 1 and October 1, 2023 in Utah County, the defendant confessed to police that he had raped the victim multiple times. On October 1, 2023, the victim was in the bathroom with the door closed and locked. The defendant unlocked the door from the outside, walked in and tried to force the victim's legs apart as she sat on the counter. The victim said "no" and the defendant ripped her clothes off, removed her tampon, and put his penis in her vagina, telling her that it was going to happen whether she wanted it to or not (COUNT 1). On another day, the defendant was behind her and inserted his penis in her vagina while she told him "no" and "stop." She said the defendant started to strangle her and she had difficulty breathing, nausea, dizziness, headache, and felt like the defendant was going to kill her (COUNT 2). One time the victim was alone in the shower and the defendant got into the shower with her and inserted his penis into her vagina. The defendant admitted that he knew the victim was not consenting (COUNT 3). On at least two occasions, the victim was asleep and when she woke up, the defendant had his penis in her vagina. She said the

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defendant knew she had been asleep and could not consent but continued until he orgasmed (COUNTS 4 and 5). The victim remembers a time when the defendant started to touch her body to get himself aroused, then got on top of her and put his penis in her vagina. The victim said she started to cry and that made the defendant orgasm (COUNT 6). The defendant admitted that on two other occasions, he had sexual intercourse with the victim when he knew she was not consenting (COUNTS 7 and 8).

Based upon evidence received from Steven Hawkins of the American Fork Police Department, I have reason to believe the defendant committed the offense(s) as charged herein.

Authorized for presentment and filing this October 17, 2023.

UTAH COUNTY ATTORNEY'S OFFICE

Sworn to by:

/s/ Christine Scott
CHRISTINE SCOTT
Deputy Utah County Attorney

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